Crisis 6: An uneven playing field

The other major concern is how unevenly the umpire treats the players. Between August 2023 and January 2024, the INDIA bloc wrote at least eight times seeking a meeting with the full commission on EVMs and VVPAT counting, but was referred to FAQs on the ECI website. Yet on June 2, 2024, a day before the Lok Sabha counting, a BJP delegation led by Nirmala Sitharaman met the full commission.

The same asymmetry marked the *"vote chori"* row. On August 7, 2025, Rahul Gandhi presented data alleging 100,250 suspect entries in the Mahadevapura segment of Bengaluru Central. On August 17, at his first press conference as CEC, Kumar said the Congress leader should file an affidavit within seven days or apologise to the nation. Days later, BJP MP Anurag Thakur made similar claims about "fake" and "doubtful" voters in Rae Bareli, Wayanad, Diamond Harbour, Kannauj and other Opposition-held seats. He was not asked for an affidavit. When Rahul Gandhi's November 2025 "H Files" alleged around 2.5 million suspect entries in Haryana, the state CEO replied that more than 416,000 claims had been processed without appeal and that 86,790 polling agents had raised no objection.

Access to evidence has also narrowed. In December 2024, after litigation seeking Haryana election records, the Centre, after consulting the ECI, amended Rule 93(2)(a) of the Conduct of Elections Rules, narrowing public access to CCTV and webcasting recordings. In May 2025, the ECI directed that such recordings be destroyed 45 days after results if no election petition was filed, and refused Rahul Gandhi's demand for Maharashtra footage after 5 pm, citing the risk of voter profiling. Jairam Ramesh's challenge to the amendment remains pending in the Supreme Court.

Party-split rulings have added to perceptions of bias, with critics pointing to the ECI's decisions in favour of the factions aligned with the BJP: Eknath Shinde's Shiv Sena in February 2023 and Ajit Pawar's Nationalist Congress Party in February 2024. Both decisions remain under challenge. The Trinamool Congress (TMC) is the latest test. Ahead of West Bengal by-elections, the ECI froze the name and symbol of the TMC through an interim order and assigned the rival factions the names Democratic Trinamool Congress and Mamata All India Trinamool Congress. The Supreme Court subsequently asked the ECI to resolve the dispute expeditiously; on September 28, it gave the ECI three months to decide the issue, after allowing the factions four weeks to complete their submissions.



"The decisions concerning SIR are taken collectively and in adherence to established protocols. Respect for our constitutional institutions is paramount"

—N. CHANDRABABU NAIDU
CM, Andhra Pradesh & TDP chief



"It is problematic if people begin to doubt the electoral process itself. The ECI needs to present its stance not to Rahul Gandhi but to the public"

—CHIRAG PASWAN
President, Lok Janshakti Party (Ram Vilas) & Union minister, Food Processing

Restoring Credibility

Political pressure had been building even before the internal notes surfaced. In March, 193 MPs moved a notice seeking the CEC's removal; it was rejected in April. Rahul Gandhi has since accused the BJP, RSS and the ECI of "treason" and demanded Kumar's resignation, as has Akhilesh Yadav. The Congress Working Committee has also called for the resignations of Prime Minister Narendra Modi and home minister Amit Shah over alleged "*vote chori*", Kumar's removal as CEC, a suspension of the SIR and the restoration of the deleted names. The Cockroach Janta Party has called for Kumar to be prosecuted, the SIR to be frozen and the 2023 law governing the appointment of ECs to be repealed.

Legal demands and challenges have followed. On September 24, TMC MP Mahua Moitra sought an FIR against Kumar. A public interest litigation filed by advocate Shailendra Mani Tripathi asks the apex court to set aside decisions and software changes made without the full commission's concurrence or contrary to its majority under Section 18, and seeks criminal action against Kumar, Garg and Khanna. Two petitions before the Bombay High Court seek cancellation of 14 SIR orders issued by the CEC. Even NDA allies—Lok Janshakti Party's Chirag Paswan, Telugu Desam's Lavu Srikrishna Devarayalu and Rashtriya Lok Morcha's Upendra Kushwaha—have asked the ECI to clear the air, though the parties subsequently reiterated their confidence in its actions.

The ECI's challenge is no longer merely legal, it is also one of credibility. The poll body now has to address not only internal dissent but also the concerns raised by voters, political parties and the courts over how it exercises its powers. Only then can it demonstrate that the country's electoral umpire is not merely independent but visibly so. ■